

OFFICIAL TRANSCRIPT of the American Military
Tribunal NO. VI in the matter of the United States of
America against CARL KRAUCH et al., defendant,
sitting at Nurnberg, Germany, on 14 October, 1947
0930, Justice SHAKE presiding.

THE MARSHAL: The Honorable, the Judges of Military Tribunal VI,
Military Tribunal VI is now in session. God save the United States
of America and this Honorable Tribunal.

There will be order in the court.

THE PRESIDENT: Mr. Marshal are all the defendants present?

THE MARSHAL: May it please Your Honor, all of the defendants are
present with the exception of Wurster and Hoerlein who are absent due
to illness.

THE PRESIDENT: Before we resume the cross-examination of the witness
on the stand, the Tribunal would like to make a statement on the record
directed to counsel.

On yesterday morning we spend some considerable time seeking to ascer-
tain the desires of counsel for the defense with respect to the cross
examination of a large number of witnesses whose affidavits have been
introduced in evidence by the prosecution.

The Tribunal directs me to say that it wishes be definitely and
clearly understood that there was and is no disposition on its part to
deprive any defendant of the right of cross examining any witness pro-
duced or which should be produced by the prosecution. Our only purpose
was in the interests of time and orderly procedure, to obviate the neces-
sity of bringing a witness on this stand and then finding ourselves con-
fronted with the situation that it was not desired to cross-examine the
witness.

We felt and we do feel that when counsel for the defense understand,
and have concluded, that they do not desire to cross-examine a witness,
that their position as members of the Bar and attorneys of this Tribunal
imposes upon them the obligation of advising us frankly so that we may
arrange our trial schedule accordingly. I repeat that it is not our
disposition to deprive any defendant of the privilege of cross-examining